

24LBCV02132 24LBCV02132

County: los-angeles

Division: Civil Law and Motion

Department: S27

Hearing date: 2026-08-20

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1. Background

Facts

Plaintiff, Spiro Salim filed this action against Defendant, Tesla, Inc. for Song-Beverly violations and related claims.

2. Motion

for Attorneys' Fees and Costs

a.

Initial Note

Plaintiff's moving papers indicate the parties settled the action for \$5000 "plus, attorney's fees, costs, and expenses." Motion at page 3, lines 6-7. Plaintiff's attorney's declaration in support of the motion is completely silent concerning the terms of the settlement. Defendant, in its opposition, indicates it denies Plaintiff is the prevailing party, but so indicates only in the introductory paragraph of the opposition and then does not address this issue in the points and authorities. Additionally, Defense Counsel declares the motion should have been addressed to the arbitrator, but the points and authorities also do not discuss this contention. Defense Counsel also does not attach a copy of the parties' settlement agreement, and Defendant does not address or dispute the contention, again not supported by any evidence, that the parties' settlement agreement expressly contemplated an award of attorneys' fees.

The Court, for purposes of this ruling, presumes the parties' settlement agreement contemplates an award of attorneys' fees. The Court will therefore award attorneys' fees, but advises Counsel to more carefully address these issues and provide evidence re: these issues in the future.

b.

Other Cases

Both parties cite to other cases wherein trial courts have reduced and/or approved Plaintiff's attorneys' hourly rates. Defendant also cites to various appellate opinions affirming trial court reductions in fees awards in lemon law cases. Collectively, all of these minute order and appellate opinions stand for the position that the trial court has broad discretion in determining both an appropriate hourly rate and also any reductions in hours billed.

c.

Hourly Rate

Plaintiff's attorney bills at the rate of \$675/hour. The Court agrees that this is excessive for the type of rote work done by lemon law attorneys. Defendant encourages the Court to reduce the hourly rate to \$325/hour. The Court will do so.

d.

Number of Hours Billed

Defendant asks the Court to reduce the number of hours billed from 47.7 hours to 19.1 hours. The Court has reviewed Defendant's examples of over-billing and agrees that the billing is padded, but will reduce the hours billed by 1/3 instead of the requested reduction. The Court reduces the hours billed from 47.7 to 32.

e.

Lodestar Multiplier

The Court finds the hourly rate and

fees billed are sufficient to compensate Plaintiff's attorney and the Court will not apply a lodestar multiplier.

The Court will also not adjust the lodestar downward, as requested by Defendant.

f.

Costs

Plaintiff also asks for costs by way of the motion. Plaintiff filed a memorandum of costs on 5/05/26, and costs will be processed in connection with the memorandum. The Court declines to consider the request for costs made in connection with the motion.

g.

Conclusion

The Court awards 32 hours of attorney time at the rate of \$325/hour, or \$10,400 in attorneys' fees. The Court defers the issue of costs to be handled in connection with the memorandum of costs.

h.

Notice

Plaintiff is ordered to give notice.